



Engineering

2101 O'NEIL AVENUE Room 206, Cheyenne, WY 82001
(Phone) 307-637-6268 (Fax) 307-637-6256

MEMORANDUM

TO: Mayor Orr
City Council
FROM: Sam Berta, Construction Engineer
DATE: February 5, 2019

SUBJECT: PROFESSIONAL SERVICES AGREEMENT WITH SHORT ELLIOTT HENDRICKSON (SEH) FOR SERVICES TO DESIGN THE 2019 MILL AND OVERLAY PROJECT.

For your consideration, we offer a Professional Services Agreement with Short Elliott Hendrickson for engineering services for the design of the 2019 mill and overlay project. This year's mill and overlay will consist of Airport Parkway from Pershing Blvd. intersection to the Converse Ave. intersection. This project will involve resurfacing of the asphalt as well as addressing existing concrete that is in disrepair. Additionally, areas that do not have curbing present will be evaluated for new curb and gutter to be added. Drainage will be reviewed to insure it is functioning correctly. The work will result in a sustainably better surface condition and a more robust road, extending its life span.

Funding for this project is coming from the 2015-2018 5th Penny sales tax.

In summary Staff recommends approval of the professional services agreement between the City of Cheyenne and Short Elliott Hendrickson in the amount of \$46,463.60

Approved as to
form only:


Date: 2-5-19

City Contract # _____

PROFESSIONAL SERVICES AGREEMENT
for
Engineering Design Services for the
Airport Parkway Pavement Rehabilitation Project

THIS AGREEMENT is made and entered into this _____ day of _____, 2019, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Short Elliot Hendrickson Inc., located at 4007 Greenway St., Ste. 201, Cheyenne, WY 82001 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed by November 30, 2019.

3. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

4. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. **DRUG-FREE WORKPLACE**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are

required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. **INDEMNIFICATION/HOLD HARMLESS**

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

- 8. **MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES** 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
- 9. **COMPENSATION**
In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Forty-

Six Thousand Four Hundred Sixty-Three Dollars and Sixty Cents (\$46,463.60) as stated in Exhibit A.

10. MONTHLY REPORT

With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

11. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.

13. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall be as set forth in Paragraph 2. The parties may by mutual written agreement extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.

- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. ENTIRETY OF AGREEMENT

This Agreement consisting of 6 pages, and Exhibit A consisting of 7 pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals effective the day and year first above written.

City of Cheyenne

(SEAL)
Attest:

By: _____
Marian J. Orr, Mayor

Kristina F. Jones, City Clerk

Consultant

By: _____

Print Name: _____

Title: _____

EXHIBIT A – SCOPE OF WORK

STAFFING

Work will primarily be completed out of SEH's Cheyenne, Wyoming office. Ken Hodgen, P.E. will be the primary point of contact throughout the plan development. Topographic surveying will be provided by SEH in-house staff. Coring and geotechnical investigation will be completed by Terracon, of Cheyenne, Wyoming.

SCHEDULE

The project is expected to take approximately 8 weeks to complete, including two reviews by City staff.

SCOPE OF WORK

1. Project Management

- a. SEH will plan to attend two meetings during the development of the Construction Documents. These will include a Preliminary Design review meeting and a Final Design Review Meeting.
- b. This work will also include administrative and coordination tasks, such as invoicing, developing a schedule, arranging meetings, and coordination with internal and external team members.

2. Preliminary Design Phase

During the Preliminary Design Phase, SEH will work with the City to develop preliminary plans and Special Provisions to a 60% level. GIS aerials and utility information will be provided by the City for the corridor and will be used as a basis for the design.

- a. Conduct pavement coring to determine the existing pavement structure and material thickness and material testing on the subgrade soils directly beneath the pavement surface. A total of 13 locations are proposed to be cored to the existing subgrade material, with 7 of those locations also including subgrade material testing to include: soil classification, moisture content, and Atterberg Limits. Utility markings and traffic control will be included in this work.
- b. Conduct field reconnaissance of Airport Parkway West, Airport Parkway, and Airport Parkway East, from Pershing Boulevard to Converse Avenue and approximately 50-75 feet onto Leeds Place. The field reconnaissance will document the condition and location of:
 - i. Pavement areas to be patched.
 - ii. Pavement areas to be crack sealed.
 - iii. Curb and gutter to be replaced due to deterioration, damage, or improper drainage.
 - iv. Sidewalk to be replaced due to excessive cross slope, deterioration, damage, or trip hazards.
 - v. Signs to be replaced due to fading, deterioration or damage, in-kind, in accordance with current MUTCD and City of Cheyenne standards.
 - vi. ADA ramps to be replaced or repaired due to non-conforming longitudinal or transverse slopes, damaged or missing tactile warning plates, nonconforming curb geometry, or other identified issues. Ramp slopes will be checked and noted using a digital level.
 - vii. Evidence of improper drainage, ice accumulation, and standing water
 - viii. Condition of private landscaping, retaining walls, and other improvements within the proposed construction limits.
 - ix. Other deficiencies such as damaged above ground public utilities, sidewalk obstructions, obstructed or damaged drainage structures or pipes.
- c. Perform field topographic surveying in select locations based on observations conducted during the field reconnaissance effort. Locations may include areas requiring the addition of drainage structures requiring the establishment of specific elevations, curb and gutter and driveway construction where it did not previously exist, ADA ramp repair or construction areas from the back of sidewalk to the centerline of the street, and other areas requiring elevation and location information. We have assumed these areas will include:

- i. Black Court-Airport Parkway West Intersection for ADA ramp repair/installation.
- ii. Airport Court-Airport Parkway West Intersection for driveway replacement for ADA conformance and deterioration.
- iii. Airport Parkway-Airport Parkway West Intersection for ADA ramp repair/installation.
- iv. Cheshire Drive-Airport Parkway East Intersection for ADA ramp repair/installation.
- v. East side of Airport Parkway East from Cheshire Drive to Leeds Place.

Field topographic surveying does not include establishment of additional benchmarks or control points, boundary surveys, plat or easement research, on property located outside the Airport Parkway right of way.

- d. Document the items listed in Section 2.d. with photographs and measurements. The pavement, sidewalk, and driveway widths will be measured and documented to confirm the proposed improvement layouts on aerial mapping.
- e. Conduct drainage analysis to include calculations for runoff bypass, ponding depths, and improper grading requiring elevation adjustment, additional inlets or other measures. Calculations will be included in a memo for city reference.
- f. Develop Preliminary Plans to consist of:
 - i. Cover Sheet
 - ii. General Notes and Summary of Quantities
 - iii. Typical Sections
 - iv. Plan View Sheets
 - v. ADA and Driveway Grading Details
 - vi. Signing and Striping Sheets
 - vii. Standard Details
 - viii. Project Specific Details
- g. Develop Preliminary Cost Estimate.
- h. Develop Preliminary Special Provisions, if required.
- i. Furnish three (3) copies of Preliminary Plans, Special Provisions, and Preliminary Cost Estimate to City Representative for review.

3. Final Design Phase

- a. Conduct design review meetings to discuss observations and findings during the Preliminary Design Phase, discuss City review comments, and address other outstanding issues identified by SEH or the City.
- b. Upon authorization to proceed from the City Representative, incorporate comments, modifications or changes identified during review of the Preliminary documents.
- c. Develop Final Plans to consist of:
 - i. Cover Sheet
 - ii. General Notes and Summary of Quantities
 - iii. Typical Sections
 - iv. Plan View Sheets
 - v. ADA and Driveway Grading Details
 - vi. Signing and Striping Sheets
 - vii. Standard Details
 - viii. Project Specific Details
- d. Develop itemized Bid Sheet.
- e. Update Cost Estimate.
- f. Update Special Provisions, if required.
- g. Furnish three (3) copies of Preliminary Plans, Special Provisions, and Preliminary Cost Estimate to City Representative for review.

- 4. Attend pre-bid meeting organized and conducted by City staff and provide written responses to contractor questions for inclusion in City prepared Addenda. SEH has budgeted 8 hours for providing written responses to the contractor questions.

SEH
FEE PROPOSAL - DESIGN ENGINEERING
2019 Pavement Rehabilitation Project - Airport Parkway
City of Cheyenne
1/29/2019

Work Elements	SEH	Subconsultants	Total Fee
Task 1. Project Management			
Labor	\$3,598.00	\$0.00	
Reimbursables	\$0.00	\$0.00	
Total	\$3,598.00	\$0.00	\$3,598.00
Task 2. Preliminary Design Phase			
Labor	\$28,732.00	\$0.00	
Reimbursables	\$2,080.60	\$6,950.00	
Total	\$30,812.60	\$6,950.00	\$37,762.60
Task 3. Final Design Phase			
Labor	\$4,062.00	\$0.00	
Reimbursables	\$104.00	\$0.00	
Total	\$4,166.00	\$0.00	\$4,166.00
Task 4. Pre-Bid Services			
Labor	\$937.00	\$0.00	
Reimbursables	\$0.00	\$0.00	
Total	\$937.00	\$0.00	\$937.00
Total - Design Engineering	\$39,513.60	\$6,950.00	\$46,463.60

Ken Hodgen, PE
Sr. Professional Engineer/Office Manager

Name



Signature

Short Elliott Hendrickson, Inc.

Firm

1/29/2019

Date

*I hereby certify that this price proposal shall remain
valid for a period of one hundred and twenty (120) days.*

Ken Hodgen, P.E.

Name



Signature

Short Elliott Hendrickson, Inc.

Firm

1/29/2019

Date

Design Labor									
SEH									
2019 Pavement Rehabilitation Project - Airport Parkway									
City of Cheyenne									
Work Tasks	Rick Caldwell Project Principal/ QA/QC	Ken Hodges Project Manager	Jennifer Russell Project Engineer	Emma Eberle Project Engineer	Bill Brumbaugh Technician	Scott Klinker Surveyor	Kevin Martin Surveyor	Suzanne O'Connor Senior Accountant	Labor Cost
Task 1. Project Management									
Project Kick-off Meeting		1							\$155.00
Preliminary Design Review Meeting		1							\$155.00
Project Closeout		1							\$155.00
Internal and External Coordination		10							\$1,550.00
Administration and Billing		3						6	\$1,173.00
Quality Assurance	2								\$110.00
Task 1 Subtotal									\$3,598.00
Task 2. Preliminary Design Phase									
Conduct Pavement Coring		2							\$310.00
Perform Field Topographic Survey		2				4	54		\$6,790.00
Documentation of Field Reconnaissance					4				\$360.00
Conduct Field Reconnaissance									
Pavement Recon				22	8				\$3,316.00
Sidewalk, Curb and Sign Recon				22					\$2,596.00
ADA Ramp and Sidewalk Recon				10					\$1,180.00
Drainage Analysis		2	12						\$1,776.00
Develop Preliminary Plans, Cost Estimate, and Special Provisions									
Cover Sheet (1 Total)					4				\$360.00
General Notes and Summary of Quantities (1 Total)		2			4				\$670.00
Typical Sections (1 Total)		2			4				\$670.00
Plan View Sheets (10 Sheets)					40				\$3,600.00
ADA and Driveway Grading Sheets (2 Sheets)					24				\$2,160.00
Signing and Striping Sheets (5 Sheets)					5				\$450.00
Standard Details (6 Sheets)					4				\$360.00
Project Specific Details (2 Sheets)					16				\$1,440.00
Develop Preliminary Cost Estimate			12						\$1,416.00
Develop Preliminary Special Provisions		4	6						\$1,328.00
Task 2 Subtotal									\$28,732.00
Task 3. Final Design Phase									
Develop Itemized Bid Sheet		2							\$310.00
Develop Final Plans, Cost Estimate, and Special Provisions									
Cover Sheet (1 Total)					1				\$90.00
General Notes and Summary of Quantities (1 Total)					2				\$180.00
Typical Sections (1 Total)					2				\$180.00
Plan View Sheets (10 Sheets)					16				\$1,440.00
ADA and Driveway Grading Sheets (2 Sheets)					4				\$360.00
Signing and Striping Sheets (5 Sheets)					2				\$180.00

Design Reimbursables* SEH 2019 Pavement Rehabilitation Project - Airport Parkway City of Cheyenne 01/29/19									
Work Tasks	Reproductions 8.5"x11" \$0.25 ea.**	Reproductions 11"x17" \$0.75 ea.**	Daily Vehicle Rate \$26/Day	Survey Equipment \$	Shipping \$	Mileage miles	Mileage \$0.58/mi.	Price	
Task 1. Project Management									
Total for Task 1	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00		\$0.00		
							\$0.00		
									Subtotal - Task 1
									\$0.00
Task 2. Preliminary Design Phase									
Perform Field Topographic Survey			\$104.00	32		420	\$243.60		
Conduct Field Reconnaissance						50	\$29.00		
Develop Prelim. Plans, Cost Estimate, and Special Provisions	80	112					\$0.00		
Total for Task 2	\$20.00	\$84.00	\$104.00	\$1,600.00	\$0.00		\$272.60		
									Subtotal - Task 2
									\$2,080.60
Task 3. Final Design Phase									
Develop Final Plans, Cost Estimate, and Special Provisions	80	112					\$0.00		
Total for Task 3	\$20.00	\$84.00	\$0.00	\$0.00	\$0.00		\$0.00		
									Subtotal - Task 3
									\$104.00
Task 4. Pre-Bid Services									
							\$0.00		
Total for Task 4	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00		\$0.00		
									Subtotal - Task 4
									\$0.00
									Total Price
									\$2,184.60

* - Unit Prices for estimate purposes only, reimbursables will be invoiced at actual cost

** - For productions runs only, courtesy copies at no cost

Design Subconsultants - Summary 2019 Pavement Rehabilitation Project - Airport Parkway City of Cheyenne 01/29/19			
Work Tasks		Terracon	
Task 2. Preliminary Design Phase			
Pavement Cores and Report		\$6,950.00	
		Total	\$6,950.00